

Analysis ⓘ

5 Questions Keeping the Epstein Files Alive

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An image of the late disgraced financier Jeffrey Epstein from the [U.S. Attorney General's Office](#) [Read More](#) | [Newsweek/DOJ's Epstein Files Library](#)

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For years, the [Jeffrey Epstein](#) files were discussed in terms of what we didn't know about the well-connected, wealthy sex offender's activities. The information dredged up in the investigation was withheld by officials, for reasons unclear, from the public.

The Trump administration was supposed to change all that. In some ways, it has, releasing millions of Epstein files into the public domain. But there's still so much we don't know about the late financier and his elite associates.

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The most revealing part of the latest Epstein files ruling wasn’t another name or a photo. It was a concession.

The plaintiff was Katie Phang, an independent journalist and legal commentator who sued in April to enforce the Epstein Files Transparency Act.

U.S. District Judge Emmet Sullivan wrote that Attorney General Todd Blanche had "conceded Ms. Phang’s merits arguments" after failing to answer them substantively.

Sullivan ordered the DOJ to release specific unredacted Epstein-related files by July 2 or explain why it could not, despite the law passed by Congress compelling it to have done so by the end of last year.

The DOJ can point to a vast archive it has already released. But the question has shifted from how many pages were posted to whether the Trump administration can justify the pages, names, logs and categories it still has not made public.

The story also extends beyond what DOJ withheld to what the legal system allowed to be privatized. There’s a clear political reason this issue will not disappear too.

In a June 19-22 Economist/YouGov poll of U.S. adult citizens, 73 percent of respondents said the government had not released all the information it has about Epstein.

Among independents, 78 percent said the government had not released all the information it has, and 66 percent disapproved of Trump’s handling of investigations into Epstein.

1. What exactly is still missing after millions of pages?

Millions of Epstein-related records have been made public since December, but lawmakers and survivors have continued to question missing or heavily redacted material.

Officials said only about half of the 6 million pages gathered by the DOJ would be released, with unreleased records described as duplicates, unrelated to Epstein, or protected by privilege.

The [DOJ's Epstein Library](#) that houses materials responsive to the Epstein Files Transparency Act will be updated if additional documents are identified for release.

One can accept that not every page belongs online. Duplicates, irrelevant material, privileged communications and victim-identifying information all give the government legitimate reasons to withhold or redact. But the Epstein transparency law requires a much more instructive map of the archive—including of redacted material.

It ordered the attorney general to make a [report to Congress](#) listing categories of records released and withheld, along with a summary of redactions and their legal basis.

The law says redactions must come with [written justifications](#) published in the Federal Register and submitted to Congress. A redaction without a reason is an invitation to distrust the decision behind it.

Sullivan's opinion said the [redaction log had not been published](#), despite the law's deadline of December 19, 2025.

There remains the absence of a trusted index of the material in its entirety, published and withheld, with reasons specified for each document not made public.

2. Whose names were redacted, and under what rule?

Sullivan's order concerned specific redactions, not a general invitation to publish every name in every file.

The order covered [eight emails with sender and recipient names redacted](#), two DOJ documents with potential co-conspirator names obscured, underlying FBI interview notes behind FD-302 reports, foreign-language materials and a redaction log.

The documents include emails, a draft indictment, a 2019 email referencing co-conspirators and FBI interview notes connected to documents summarizing unverified allegations involving President Donald Trump.

The law itself recognizes that some redactions are proper. It permits withholding or redacting victims' personally identifiable information, child sexual abuse material, information that would jeopardize active federal investigations, images of death or abuse, and properly classified national security material.

The public debate keeps flattening the issue into "release the names." But Sullivan's order points to the better question to ask: What category of name is being protected?

Victim, witness, private third party, potential co-conspirator, privileged communication, active-investigation material or classified information are different categories with different justifications.

3. Did the redaction process protect victims or expose them?

This is the moral center of the files fight. The DOJ's strongest argument for redactions is victim protection, and its Epstein Library says such redactions to shield identifies have been applied. But the DOJ also warns that, because of the volume of information, the website may still contain nonpublic personally identifiable data, or other sensitive content, including sexual material.

That warning undercuts the very trust that privacy redactions are supposed to build.

In February, attorneys representing more than 200 alleged Epstein victims asked two federal judges to order the DOJ website taken down, alleging widespread failures to redact victims' names and identifying information.

The lawyers said they had reported thousands of redaction failures on behalf of nearly 100 survivors and cited examples involving names, bank information and addresses.

Blanche defended DOJ's procedures on ABC's "This Week," saying the department had taken pains to protect victims and that redaction errors affected about .001 percent of materials.

DOJ also acknowledged mistakes were inevitable in a disclosure of this size and said it would correct errors reported by victims or their lawyers.

A responsible government cannot dump every investigative file onto the internet.

The Epstein materials likely contain victim identities, sexual abuse material, false tips, unverified allegations, private information, privileged material and references to people who were never charged.

4. What decisions did Todd Blanche personally make?

The fair question here asks what Blanche decided, what he delegated, and what he certified as compliant with the law.

Sullivan's order requires either production or a showing of cause for discrete categories, including unredacted sender and recipient names, potential co-conspirator names, underlying FBI interview notes and a Federal Register redaction log.

Congress is already circling that chain of decision-making. Republican House Oversight Chair James Comer said he was working to have Blanche appear before the committee in July.

Comer described the central question as "what, if any, documents are left out there."

Rep. Robert Garcia, the committee's top Democrat, wants Blanche's appearance to be a videotaped deposition under oath.

Oversight Democrats separately demanded transcribed interviews with Blanche and FBI Director Kash Patel regarding the Epstein investigation.

After Trump fired Pam Bondi in April and made Blanche acting attorney general, Bondi told the committee in May that she had "delegated oversight" of the Epstein document review to Blanche while he was her deputy, Garcia said, adding that she "repeatedly shifted responsibility" to him.

Voters do not need a theory of everything. They just need an accountable official who can explain the details of the decisions they made. Otherwise, it's another layer of opacity in an issue that was supposed to be about transparency.

5. Are the real missing files government records—or private silence?

The public tends to imagine the Epstein files as a single government vault.

House Oversight members had discussed subpoenas for people who could testify about confidential settlements between some Epstein accusers and some of Epstein's friends.

Some accusers signed prelitigation settlements with friends of Epstein whom they also accused of misconduct, and that those settlements included nondisclosure agreements, according to Business Insider, citing people with direct knowledge.

This widens the secrecy problem beyond DOJ. A congressional subpoena could require testimony even where an NDA exists, though the committee would need majority support to

practical reasons and, crucially, cannot block criminal proceedings.

The survivor-protection tension is at play here, too.

Brad Edwards, an attorney for many of Epstein’s accusers, disclosed in a 2024 podcast interview that his clients could have brought claims against 10 to 15 of Epstein’s friends, and that some of those men signed confidential settlements over allegations of misconduct.

Confidentiality can protect powerful people, but it can also protect survivors from another public ordeal.

Burning Issue

The Epstein files are alive because the government has not made the knowable parts knowable.

A public that believes powerful people escape accountability will not be satisfied by volume. It wants a map, a rule book and a person responsible for the missing pieces.

The files issue will keep burning until someone can explain what is still missing—and give a tolerable, specific account of why.

Contact Newsweek editors on this story: Shane Croucher and James Debens.

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